

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
IAN FORTUNE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
MCGHEE, Tax No. 951987, POLICE OFFICER RODNEY
SOUFFRANT, Tax No. 961319, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and number of whom are
unknown at present),

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 13, 2022

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
POLICE OFFICER DANIEL MCGHEE, Tax No. 951987, 69th Precinct, 9720 Foster Ave, Brooklyn, NY 11236
POLICE OFFICER RODNEY SOUFFRANT, Tax No. 961319, Strategic Response Group 3 Brooklyn

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff IAN FORTUNE, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on October 13, 2019, at approximately 4:45 am, plaintiff was lawfully present on the sidewalk in the vicinity of 50th Street and 3rd Avenue, Brooklyn, New York when defendants unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff, without probable cause or any legal justification. Defendants purportedly arrested plaintiff for robbing another individual without any evidence to suggest he had any involvement in the robbery. The crime victim could not even positively identify plaintiff as an individual who robbed him. Nevertheless, the defendants falsely arrested plaintiff and transported him against his will to the 72nd Precinct whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. On or about October 14, 2019, more than 24 hours after plaintiff was initially stopped and seized by the defendants, plaintiff was released from custody at Central Booking, without being charged with committing a crime. Plaintiff was released after the Kings County District Attorney's Office declined to prosecute him because it determined that the defendants lacked probable cause and had insufficient evidence to arrest and/or prosecute plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, and falsely arrested plaintiff in violation of the Fourth,

Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff IAN FORTUNE is a resident of the state of New York.

3. Defendant POLICE OFFICER DANIEL MCGHEE, Tax No. 951987, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER DANIEL MCGHEE, Tax No. 951987, was at all times relevant herein, assigned to the 72nd Precinct and is presently assigned to the 69th Precinct Detective Squad.

5. Defendant POLICE OFFICER DANIEL MCGHEE, Tax No. 951987, is being sued in his individual and official capacity

6. Defendant POLICE OFFICER RODNEY SOUFFRANT, Tax No. 961319, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER RODNEY SOUFFRANT, Tax No. 961319, was at all times relevant herein, assigned to the 72nd Precinct, and is presently assigned to the Strategic Response Group 3 Brooklyn.

8. Defendant POLICE OFFICER RODNEY SOUFFRANT, Tax No. 961319, is being sued in his individual and official capacity.

9. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police

department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On October 13, 2019, at approximately 4:45 am, plaintiff was lawfully present in the vicinity of 50th Street and 3rd Avenue, Brooklyn, New York when defendants unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff, without probable cause or any legal justification.

16. Plaintiff was lawfully present on the sidewalk in the vicinity of 50th Street and 3rd Avenue, Brooklyn, New York when defendants unlawfully stopped plaintiff and searched his person, without reasonable suspicion, probable cause, or any legal justification.

17. Defendants did not recover any illegal, drugs, weapons, or contraband pursuant to the search of plaintiff.

18. At no time relevant herein did defendants recover any illegal drugs, weapons or contraband that was in the possession, custody, or control of plaintiff.

19. At no time relevant herein did the police officers possess objective facts that established reasonable suspicion or probable cause to believe he committed a crime or violated the law in any way.

20. On October 13, 2019, at approximately 4:00 am defendants received a report over their radios that a man was robbed from behind by two individuals as he was walking home.

21. No description was given of the two individuals who allegedly robbed the man since the man could not see the robbers when he was robbed from behind.

22. The crime victim could not even identify the individuals as male or female because he did not see his alleged assailants.

23. Defendants did not have any physical description or a clothing description of the assailants who allegedly robbed the crime victim, when they unlawfully stopped,

questioned, frisked, searched, seized, and falsely arrested claimant, without reasonable suspicion or probable cause.

24. Defendants did not possess any objective evidence that suggested plaintiff had any involvement in the robbery when they unlawfully stopped, questioned, frisked, searched, seized, and falsely arrested claimant, without reasonable suspicion or probable cause.

25. Defendants were responding to the scene of the alleged robbery, approximately 30 minutes after the robbery allegedly occurred, when they observed plaintiff walking with another individual on the sidewalk, approximately 4 blocks away from where the robbery occurred.

26. Defendants unlawfully approached plaintiff in the vicinity of 50th Street and 3rd Avenue, Brooklyn, New York, unlawfully stopped him without reasonable suspicion or probable cause to believe he committed a crime.

27. Plaintiff was not free to leave at anytime after the officers approached him.

28. The officers unlawfully frisked and searched plaintiff and recovered plaintiff's cell phone from his pocket.

29. The officers unlawfully questioned plaintiff about the cell phone he had in his possession, and plaintiff explained to defendants that the phone belonged to him.

30. The officers did not recover any of the property allegedly stolen from the crime victim in the possession, custody, or control of plaintiff.

31. Upon information and belief, defendants' only basis for approaching, stopping, frisking, questioning, searching, seizing, and falsely arresting plaintiff was that they allegedly recognized the individual who was walking with plaintiff as somebody who was previously arrested and charged with committing robberies.

32. The defendants detained plaintiff on the sidewalk located in the vicinity of 50th Street and 3rd Avenue, Brooklyn, New York for approximately 15 minutes.

33. Defendants transported the crime victim to the location where plaintiff was being detained on the sidewalk and defendants asked the crime victim if he could positively identify plaintiff and/or the other individual stopped by the defendants as either of the individuals that robbed him.

34. The crime victim was not able to positively identify plaintiff or the other individual as the individuals who robbed him.

35. Although the crime victim did not identify plaintiff as one of the perpetrators involved in the robbery, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested him, without probable cause.

36. Defendants transported plaintiff to the 72nd Precinct against his will whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

37. Defendants recovered video surveillance of the alleged robbery, and plaintiff was not identified as one of the individuals in the video surveillance that committed the robbery.

38. The defendants charged plaintiff with committing the robbery, without probable cause or any evidence whatsoever to support the charge.

39. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued for many additional hours.

40. On October 14, 2019, more than 24 hours after plaintiff was initially stopped and seized by the defendants, plaintiff was released from custody from Kings County Central Booking without being charged with any crime and without a criminal prosecution being initiated against him.

41. The Kings County District Attorney's Office declined to prosecute plaintiff and ordered plaintiff to be released from custody because it determined that there was "Insufficient Evidence to Prosecute" plaintiff.

42. The defendants did not possess probable cause or any legal justification to arrest plaintiff or charge him with committing a crime.

43. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

44. Defendants unlawfully searched plaintiff without probable cause.

45. Defendants did not recover any illegal drugs, weapons, or contraband on plaintiff or from plaintiff's possession, custody, or control pursuant to the unlawful frisks and searches of plaintiff's person.

46. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

47. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

48. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New

York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

49. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

50. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

51. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

52. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

53. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

54. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

55. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

56. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted plaintiff without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

58. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

63. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

65. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

69. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

71. Defendants lacked probable cause to search plaintiff.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

75. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

77. Defendants failed to intervene to prevent the unlawful conduct described herein.

78. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth and Fourteenth Amendments to the United States Constitution

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. Plaintiff was unlawfully stopped, questioned, frisked, searched, interrogated, and falsely arrested without probable cause and without an objective factual legal basis to stop, seize, and arrest plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

82. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely

arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

83. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, and Fourteenth Amendment Rights of members of the public.

84. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

85. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

86. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

87. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

88. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

89. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New

York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

90. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, and Fourteenth Amendments to the United States Constitution.

91. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

92. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff IAN FORTUNE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 13, 2022

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
October 13, 2022

David Hazan

DAVID M. HAZAN